



DEPARTMENT OF THE NAVY
PORTSMOUTH NAVAL SHIPYARD
PORTSMOUTH NH 03804-5000

IN REPLY REFER TO:



JUSTIFICATION AND APPROVAL
FOR USE OF OTHER THAN FULL AND OPEN COMPETITION

JUSTIFICATION

1. Contracting Activity

The Naval Sea Systems Command Portsmouth Naval Shipyard (PNS) Contracting Division (Code 410), Kittery, ME. The requiring activity is Portsmouth Naval Shipyard, Kittery ME.

2. Description of the Action Being Approved

Award of a firm fixed price contract on a sole source basis to Northrop Grumman Marine Systems for the disassembly, inspection, and repair of the #1 and #2 Ships Service Turbine Generators (SSTGs) [REDACTED]

3. Description of Supplies/Services

This proposed contract provides for the Original Equipment Manufacturer (OEM) to provide the inboard and outboard thrust bearing stators and axial sensor and wirewall modifications during WASHINGTON's Depot Modernization Period at Portsmouth Naval Shipyard.

The Independent Government Estimate (IGE) was prepared by reviewing historical contracts for similar work. The total estimated value of this acquisition is [REDACTED] and will be funded by FY 24 Operations and Maintenance, Navy Funding. The Government's minimum needs have been verified by the certifying technical and requirements personnel.

4. Statutory Authority Permitting Other Than Full and Open Competition

The statutory authority permitting other than full and open competition is 10 U.S.C. 2304(c)(1) or 41 U.S.C. 3304(a)(1), as implemented by Federal Acquisition Regulation (FAR) 6.302-1(a)(2). (Only one responsible source and no other supplies or services will satisfy agency requirements).

5. Rationale Justifying Use of Cited Statutory Authority

In accordance with FAR 6.302-1, only one source is capable of meeting the requirement. This authority permits limiting the number of sources solicited and to not use full and open competition for this requirement.

Northrop Grumman Marine Systems is the OEM and owns the proprietary equipment, proprietary drawings, and is the only known vendor who can complete the repair/modifications and satisfy the appropriate procedures.

6. Description of Efforts Made to Solicit Offers from as Many Offerors as Practicable

The OEM has provided virtually identical services for SSTG repair under PNS sole source contracts



the SSTG #1 Turbine High Pressure Bearing and the Thrust Bearing Housing onboard a Virginia Class Submarine. Northrop Grumman Marine Systems responded to this notice, posted by PHNSY, stating that they own the proprietary drawings and equipment required to complete the repairs. Thereafter, PNS conducted similar market research seeking vendors capable of performing SSTG repairs and providing parts. Said research was conducted in September 2016 for [REDACTED] HAMPSHIRE, in November 2016 for NEW MEXICO, in September 2017 for VIRGINIA, February [REDACTED] Contract Specialist conducted market research for the current requirement by posting a sources sought notice to <https://sam.gov>. The notice sought vendors with the capability of providing the materials required to repair the SSTG #1 and SSTG #2 onboard a Virginia Class Submarine. No responses were received.

Notice of this justification will be provided on <https://sam.gov> in accordance with FAR 6.305.

7. Determination of Fair and Reasonable Costs

The Contracting Officer anticipates the costs to the Government for the items covered in this J&A will be fair and reasonable by reviewing the IGE along with past contracts. A determination of fair and reasonable price will be based on price analysis by the Contracting Officer of the contractor's quotation and/or a comparison of previous pricing history, historical contract analysis, published price list of same or similar items, or any other reasonable basis, in accordance with FAR 15.404, prior to award.

8. Actions to Remove Barriers to Competition

Barriers should be reviewed at the time ships are built, i.e., whether component(s) being installed shipboard will remain proprietary to the OEM. If another potential source emerges, PNS Code 410 Contracting Division will assess whether competition for future requirements is feasible.



CERTIFICATIONS AND APPROVAL

TECHNICAL/REQUIREMENTS CERTIFICATION (FAR 6.303-2(c))

I certify that the facts and representations under my cognizance, which are included in this justification and its supporting acquisition planning data, including Acquisition Plan No. PL-2007.1, except as noted herein, are complete and accurate to the best of my knowledge and belief.

TECHNICAL COGNIZANCE

